

Calendar Line 7

Case Name: *Atul D. Shinde v. PLM Loan Management Service, Inc. et al.*

Case No.: 25CV481591

Before the Court is Defendant PLM Loan Management Services, Inc.’s (“Defendant” or “PLM”) demurrer to the first, second, third, fourth, fifth, sixth, seventh, and eighth causes of action alleged in the complaint filed by Plaintiff Atul D. Shinde (“Plaintiff” or “Shinde”).

This is an action to quiet title. According to the allegations of the complaint, Shinde has continuously owned and occupied real property located at 22764 Majestic Oak Way, Cupertino, California, 95014 (the “Property”) since 2004. (Complaint, ¶ 12.) The Property was encumbered by two deeds of trust: a first deed of trust in favor of Quicken Loans and a second-position deed of trust in favor of TechCU (“TCU”) securing a debt with a balance of approximately \$56,000, plus accrued interest, fees, and foreclosure costs totaling approximately \$64,485.62 (the “Second Lien”). (*Id.* at ¶ 13.) TCU initiated nonjudicial foreclosure proceedings. (*Id.* at ¶ 15.) Ole M. Pedersen (“Pedersen”) submitted a winning bid of \$308,203. (*Id.* at ¶ 17.) After satisfaction of the Second Lien and other costs, surplus proceeds of approximately \$233,000 remain. (*Ibid.*)

Shinde filed the complaint on December 10, 2025, alleging the following causes of action: (1) quiet title – no trustee authority after reconveyance; (2) quiet title and voidable sale – statutory violations and procedural irregularities; (3) cancellation of instruments; (4) equitable set-aside of trustee’s sale; (5) declaratory relief; (6) wrongful foreclosure; (7) injunctive relief; and (8) violation of automatic bankruptcy stay.

The Court GRANTS judicial notice of Exhibits 1 through 9 to PLM’s request for judicial notice under Evidence Code section 452, subdivisions (c) and (d). (PLM’s Request for Judicial Notice (“RJN”), Exs. 1-9; see Evid. Code, ¶ 452, subds. (c), (d).) The Court takes judicial notice of the existence of these exhibits but does not take notice of the truth of any disputed contents of these exhibits. (See *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 80-81 [truth of contents of court records cannot be judicially noticed]; *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194 [“While courts may notice official acts and public records, we do not take judicial notice of the truth of all matters stated therein.”], internal citations and quotation marks omitted.)

The Court OVERRULES PLM’s demurrer to the entire complaint on the grounds that Code of Civil Procedure section 430.10, subdivision (c) bars this action. A party may demur on the ground that there “is another action pending between the same parties on the same cause of action.” (Code Civ. Proc., § 430.10, subd. (c).) Shinde’s opposition notes that the complaint Shinde filed in case no. 25CV468701 has been dismissed in its entirety. (Shinde’s Opposition to PLM’s Demurrer (“Opposition”), p. 3:24-27.) PLM has “withdrawn” its argument on this basis. (See PLM’s Reply in Support of Demurrer (“Reply”), p. 10:11-16.)

The Court SUSTAINS PLM’s demurrer to the complaint’s first cause of action with 10 days’ leave to amend. The purpose of a quiet title action is to establish title against adverse claims or interest in real property. (Code Civ. Proc., § 760.020.) Civil Code section 2941 states that “the beneficiary or the assignee of the beneficiary shall execute and deliver to the trustee the original note, deed of trust, request for a full reconveyance, and other documents as